

USE OF OTHER THAN FULL AND OPEN COMPETITION SAT

1. Identification of Agency and Contracting Activity

N00244 NAVSUP FLC SAN DIEGO

3985 CUMMINGS ROAD BUILDING 116

SAN DIEGO CA 92136

NAVSUP Fleet Logistic Center Jacksonville (FLCJ)

NAS Jacksonville, FL 32212-0097

2. Nature and/or Description of the Action Being Approved

DXP Model 47 Fuel Filtration Unit. The fuel filtration system is used to clean, polish, and purify fuel received.

One (1) DXP Model 47 Fuel Filtration Unit.

Four (4) Graco Quantum I30 Pump.

One (1) Hose & Fittings Kit.

3. Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value

DXP Model 47 Fuel Filtration Unit. The fuel filtration system is used to clean, polish, and purify fuel received.

One (1) DXP Model 47 Fuel Filtration Unit.

Four (4) Graco Quantum I30 Pump.

One (1) Hose & Fittings Kit.

Is the requested material or service represents the minimum requirements of the Government Estimated Dollar?

Estimated Dollar Value:

FY/Option/Ordering Period	OM&N	OPN	RDT&E
FISCAL YEAR 202			

4. Statutory Authority Permitting Other Than Full and Open Competition

41 U.S.C. 1903 as implemented by FAR 13.501(a) Sole Source

Additional Information Regarding Statutory Authority if Applicable

Procurement Request/Solicitation/Purchase Order Number:

R200975065EA99-0

Control Number:

I. Background

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, the estimated cost/price, and the required date/period of performance

Please reference item 3 above (Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value)

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Four (4) Graco Quantum I30 Pump.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING:**A. ONLY ONE RESPONSIBLE SOURCE****Yes****1. Restrictive Rights****No**

The source has established proprietary rights, limited rights in data, patent rights, copyright processes in the item or service required.

2. Exclusive Licensing Agreements**Yes**

The item or service is only available from the Original Equipment Manufacturer (OEM), or the authorized distributor or technical representative for the OEM.

Identify the OEM and explain the circumstances surrounding why the item or service is only available from the OEM.

OR

Identify the distributor(s)/authorized technical representative(s) for the item or service. Provide evidence of the exclusive licensing agreement as an attachment to this document. If there is more than one distributor/authorized technical representative for an OEM part, then Part B, BRAND NAME SOLE SOURCE, is applicable, and Part A, ONLY ONE RESPONSIBLE SOURCE, should be left blank.

DXP Enterprises is the sole source for the above listed items. These items are required onboard to serve as a fuel filtration system and support bilge cleanliness on board the upcoming 2025 Deployment. DXP Enterprise Inc. designed custom engineered piece of equipment DXP Model 47 Fuel Filtration System. US Navy use this company particular platform. The DXP model 47 designed from the ground up to reduce weight and minimize footprint specially for LCS-2 variant platform. The individual components are cast aluminum to minimize impacts to magnetic signature especially for Mine Warfare variant LCS class ships. LCS-2 Variant ships are not built with a fuel purifier or manual mechanical clean/polish fuel. The current design is proprietary and not available elsewhere. The DXP Model 47 Fuel filtration Unit is solely available from purchase directly from DXP Enterprises.

3. Other Reasons**No**

Provide details on mission impact if requirement is not solicited from only one source.

B. BRAND NAME**No**

Item required must be a brand name product, or feature of a product, particular to one manufacturer. Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.104). Describe how market research indicates other companies' similar products or products lacking the particular feature do not meet, or cannot be modified to meet, the agency's needs.

N/A.

C. UNUSUAL AND COMPELLING URGENCY**No**

The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processes will result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.1014). Describe how market research indicates other companies' similar products and products lacking the particular feature do not meet, or cannot be modified to meet, the agency's need.

1. Date on which the requirement was first identified:

2. Required delivery date/period of performance:

to

3. Explanation of why delivery/commencement of services by the date mentioned above is required: Explain the impact to the mission if the date above is not met, and the circumstances or conditions that exist which validate the requirement as "urgent," estimated production lead time for the item, etc.

4. If appropriate, include any additional pertinent information:

CERTIFICATIONS/APPROVALS:**TECHNICAL CERTIFICATION**

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents noted herein, are complete and accurate to the best of my knowledge and belief.

Technical Cognizance

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents noted herein, are complete and accurate to the best of my knowledge and belief.

Requirements Cognizance



CONTRACTING OFFICER CERTIFICATION

I certify that this Exception to Fair Opportunity is accurate and complete to the best of my knowledge and belief. The Contracting Officer's signature below represents approval of this document.

Contracting Officer's Signature



LEVEL ABOVE CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief. The Level Above the Contracting Officer's signature below represents approval of this document.

Level Above the Contracting Officer

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

Legal Sufficiency Review

CONTRACTING ACTIVITY COMPETITION ADVOCATE REVIEW

Contracting Activity Approval

HEAD OF CONTRACTING ACTIVITY APPROVAL

Upon the basis of the above justification, I hereby approve, as Head of Contracting Activity, the solicitation of the proposed procurement described herein using other than competition, pursuant to the authority of (Placeholder for US code citation)

HCA Approval